

Supreme Court of the State of New York
Appellate Division, First Judicial Department

BEFORE: Hon. Barbara R. Kapnick
Justice of the Appellate Division

The People of the State of New York,
Respondent,

Motion No. 2025-06883
Ind. No. 3793/2015
Case No. 2025-07691

-against-

Mitchell Hernandez,
Defendant-Appellant.

**CERTIFICATE
GRANTING
LEAVE**

I, Barbara R. Kapnick, a Justice of the Appellate Division, First Judicial Department, do hereby certify that in the proceedings herein questions of law or fact are involved which ought to be reviewed by the Appellate Division, First Judicial Department, and, pursuant to Section 460.15 of the Criminal Procedure Law, permission is hereby granted to the above-named defendant to appeal to the Appellate Division, First Judicial Department, from the order of the Supreme Court, New York County, entered on or about November 12, 2025.*

Dated: February 25, 2026
New York, New York

Entered: March 03, 2026



Hon. Barbara R. Kapnick
Associate Justice

NOTICE: Within 15 days from the date hereon, an appeal must be taken, and this certificate must be filed with the notice of appeal. An appeal is taken by filing, in the Clerk's office of the criminal court in which the order sought to be appealed was rendered, a written notice in duplicate that appellant appeals to the Appellate Division, First Judicial Department (Section 460.10, subd. 4, CPL), together with proof that another copy of the notice of appeal has been served upon opposing counsel. The appeal (or consolidated appeals; see footnote) must be argued within 120 days from the date of

* In the event defendant has an existing (direct) appeal from a judgment, such appeal shall be consolidated with the appeal from the aforesaid order; and any poor person relief granted with respect to the appeal from the judgment shall be extended to cover the appeals so consolidated.

the notice of appeal, unless the time to perfect the appeal(s) is enlarged by the court or a justice thereof.